

		litigants. The moving and responding parties are expected to engage in meaningful meet and confer conversations in person or telephone, <i>not through email</i>, within a reasonable time prior to the 1/15/24 hearing. Should the parties resolve the issues presented in the motion, the motion should be taken off-calendar without delay. Specially appearing defendant shall give notice of the ruling.
5	2023-1328556 Martini vs. Mowlavi	Defendants Arian Mowlavi, M.D., Laguna Surgery Institute, LLC, A.M. Cosmetic Surgery Clinics, Inc. and James Gardner seek an order compelling plaintiff Mildred Martini to arbitrate her claims against them is denied. This is an action for medical malpractice and related claims. Plaintiff alleges that Dr. Mowlavi performed procedures without Plaintiff's consent and allowed unlicensed individuals to provide treatment to Plaintiff, resulting in mutilation of her body. [Second Amended Complaint (ROA #92 – "SAC").] Prior to her procedure, Plaintiff signed an arbitration agreement as to any "claim arising out of or related to all treatment or services provided by the physician" [Tredway Decl. (ROA #960), Ex. 1.] Trial is set for 4/1/25. [ROA ## 63, 66.] This action was commenced on 5/26/23. [ROA #2.] Defendants Mowlavi and Laguna were served with Plaintiff's first amended complaint on 6/16/23. [ROA ## 17, 19.] In November 2023 and April 2024, Defendants served discovery, both subpoenas and nonparties and written discovery to Plaintiff. [Hemesath Decl. (ROA #100), Exs. 1, 2.] Defendants also responded to written discovery. [<i>Id.</i>, Exs. 3-4.] Defendants also posted jury fees and participated in CMCs without indicating that they would seek to arbitrate, even when a trial date was set. [<i>Id.</i>, Exs. 5-8.] Fourteen months after appearing in this action, and five months before trial, Defendants filed their motion to compel arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...”

(Emphasis supplied.)

CRC 3.1330 requires that a petition to compel arbitration or to stay proceedings pursuant to Code Civ. Proc. §1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim, or a copy must be attached to the petition and incorporated by reference.

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.

As a result, the first step in determining whether to grant a petition to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate.

Was There an Agreement to Arbitrate? Yes.

Defendants presented an arbitration agreement with their moving paper and Plaintiff has not disputed its authenticity. [Tredway Decl. (ROA #960), Ex. 1.]

Rather, Plaintiff contends that Defendants waived any right to arbitration, and in any event, the agreement does not comply with Code Civ. Proc. §1295.

Because the court finds that Defendants waived their right to arbitration, it need not address compliance with Code Civ. Proc. §1295 or its preemption under the Federal Arbitration Act (“FAA”).

Waiver

Under both the FAA and the CAA, waiver is to be determined by the same standard as would be applied to any contract and not under an “arbitration-specific rule.” *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562 (overruling *Agnes Medical Center v. PacificCare of California* (2003) 31 Cal.4th 1187).

In sum, we conclude that the procedural rules of the CAA, like those of the FAA, are grounded in a policy of “treating arbitration [agreements] like all others,” not one preferring arbitration to litigation. (*Morgan, supra*, 596 U.S. at p. 418, 142 S.Ct. 1708.) Accordingly, in determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract. (*Ibid.*)

Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 583.

Accordingly, and in a change of much California case law prior to *Quach*, no showing of prejudice is required to establish waiver. *Id.* at 1136-1138. Rather, “[t]he waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant.” *Id.* at 585 (citation omitted).

To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th at 584.

A party may be found to have waived its right to arbitration by delaying any arbitration demand and choosing, instead, to litigate his claims. *See Kokubu v. Sudo* (2022) 76 Cal.App.5th 1074, 1085 (affirming denial of motion to compel arbitration upon finding of waiver: “Until filing their motion to compel in December 2020, Appellants proceeded in the same manner as a party without any right to arbitrate, participating in case management conferences, filing motions, seeking ex parte relief, and seeking and participating in discovery.”)

		Here, there is evidence showing waiver. First, as to knowledge of the contractual right, there is the agreement itself – which Defendants themselves presented. [Tredway Decl. (ROA #960), Ex. 1.] In his reply declaration, Dr. Mowlavi says he did not have access to his files in the beginning of this action because they had been seized by the police. [Mowlavi Decl., ¶ 3.] He does not state, however, that he was unaware of the existence of the arbitration agreement or his right to arbitrate. Moreover, he does not explain when he regained access to his files. As to intentional relinquishment, there is the fact that Defendants proceeded with this action for approximately 16 months --including answer, discovery, and CMCs -- without any assertion of their right to arbitration. [ROA ## 25, 73, 82; Hemesath Decl., Exs. 1-8.] Further, without explanation, Defendants waited until five months before trial to bring their motion to compel arbitration. On these facts, in in line with <i>Kokubu v. Sudo</i> (2022) 76 Cal.App.5th 1074, the court finds that Defendants by pursuing litigation of this case for over a year and waiting until five months before trial to assert a right to arbitration, have waived their right to arbitration. The motion is therefore denied.
6	2023-1351946 Gonzales vs. The Foodware Group	Motion To Compel Further Responses to RFP of Documents The Court grants Plaintiff Corrine Gonzales’ Motion to compel further responses to Requests for Production of Documents, set one, Nos. 1, 2, 22, and 23 from Defendant Costco Wholesale Corporation. Defendant shall provide supplemental verified written responses, without objections, and the documents within 30 days of notice of this order. The Motion is denied as to Nos. 15-21. <u>Legal Standard</u> Code of Civil Procedure section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.220.) An agreement to comply must be rather specific as to what is agreed to. It must state that the production and inspection will be allowed (in whole or in part); and that the documents or things in the demanded category that are in the responding party's possession, custody, or control will be produced. (Code Civ. Proc., § 2031.220.) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of